



Watching the Watchers: Protecting Privacy Rights in the Age of Smart Machines in the Philippines

Paul S. Dangan

I. Introduction: A Nation at a Digital Crossroads

Artificial Intelligence (AI) has rapidly redefined how societies function, transforming the delivery of public services, reshaping governance, and impacting personal freedoms across the world. In the Philippines, the adoption of AI in both public and private sectors is accelerating despite underlying infrastructure challenges, regulatory gaps, and widespread digital inequality. The country stands at a crossroads where the allure of technological innovation must be balanced against the protection of fundamental rights, particularly the right to privacy enshrined in the 1987 Constitution. The friction between digital advancement and constitutional protection necessitates a comprehensive examination of how existing legal, institutional, and cultural frameworks can be recalibrated to uphold dignity, safeguard autonomy, and resist authoritarian overreach. This paper explores the intersection of AI, surveillance, and privacy rights in the Philippines and advocates for a robust rights-based AI governance model tailored to the country's unique socio-political realities.

The constitutional framework of the Philippines, especially the Bill of Rights, was crafted in an era that did not foresee the invasive capacity of machine learning and surveillance algorithms. The right to privacy is explicitly protected in Section 3 of Article III, which provides that the privacy of communication and correspondence shall be inviolable except upon lawful order of the court or when public safety or order requires otherwise as prescribed by law.¹ However, this right, while clear in its articulation, is increasingly challenged by the practical realities of AI-powered tools that can gather, analyze, and predict personal behavior at unprecedented scales. The deployment of facial recognition systems, algorithmic profiling, and real-time surveillance by both state actors and corporations tests the limits of constitutional protection, often without clear legislative or judicial guidance.²

¹ Constitution of the Republic of the Philippines (1987), Article III, Section 3.

² Reyes, D. (2021). Facial Recognition and the Future of Surveillance in the Philippines. *Philippine Law Journal*, 95(3), 201–230.



The 2012 Data Privacy Act represents a critical milestone in safeguarding personal data, laying down principles of transparency, legitimate purpose, and proportionality.³ However, it remains largely reactive and inadequate in the face of the sophisticated decision-making capabilities of modern AI. The law does not mandate algorithmic transparency, explainability, or user consent for automated decision-making processes that can materially affect individuals. The lack of enforceable standards regarding AI ethics creates a vacuum where human rights are left vulnerable to systemic abuse or neglect, especially in the absence of informed public oversight or strong institutional safeguards.

II. Surveillance in Practice: From City Streets to Courtrooms

This legal gap is not merely theoretical. In practice, AI tools have already been integrated into surveillance activities by law enforcement, local governments, and even private institutions, often without public knowledge or consent. For instance, the deployment of facial recognition technologies in major urban centers such as Metro Manila, Cebu, and Davao raises serious concerns about the scope of data collection, data retention periods, and the absence of clearly defined accountability mechanisms.⁴ Law enforcement officials justify these deployments as crime prevention tools, yet the lack of transparency and due process in their use undermines constitutional protections, especially when surveillance leads to false positives or wrongful targeting.

The jurisprudence of the Philippine Supreme Court, while affirming the right to privacy in seminal cases such as *Ople v. Torres*⁵ and *Disini v. Secretary of Justice*,⁶ has yet to engage directly with AI-specific challenges. In *Ople*, the Court invalidated an executive order creating a centralized identification system, holding that any intrusion into personal privacy must pass the test of reasonableness, necessity, and proportionality. In *Disini*, the Court struck down certain provisions of the Cybercrime Law for being overbroad and vague. These rulings offer a constitutional compass but they need to be extended to emerging technologies to remain relevant. Judicial doctrine must evolve to apply traditional rights to digital and algorithmic settings. Courts must scrutinize not just the collection of data but also the logic, biases, and outcomes of algorithmic processes that rely on such data.

³ Data Privacy Act of 2012, Republic Act No. 10173

⁴ Rappler. (2020). Manila's Surveillance Plans Raise Privacy Concerns. Retrieved from <https://rappler.com>.

⁵ *Ople v. Torres*, G.R. No. 127685, July 23, 1998.

⁶ *Disini v. Secretary of Justice*, G.R. No. 203335, February 11, 2014.



III. The Ripple Effect: AI's Impact Across Philippine Society

AI's impact on civil liberties is not confined to surveillance. In the context of political expression, algorithmic content moderation and profiling pose subtle yet powerful threats to democratic participation. Social media platforms operating in the Philippines frequently rely on automated systems to detect and filter out content deemed harmful. While such practices are intended to prevent misinformation and incitement, they often result in disproportionate silencing of dissenting views, particularly from opposition groups, activists, and marginalized sectors.⁷ Automated content moderation lacks contextual understanding, and its errors disproportionately impact users who lack legal or technical recourse. As a result, freedom of expression is imperiled by opaque and unaccountable digital processes.

The Philippine education sector has also witnessed the incorporation of AI in online learning platforms, grading systems, and data analytics tools, especially during and after the COVID-19 pandemic. These systems claim to personalize learning, enhance efficiency, and optimize resource allocation. However, they also collect vast amounts of student data including emotional responses, behavioral patterns, and academic performance metrics.⁸ Without clear guidelines on data protection, access rights, and data minimization, students may be subjected to surveillance throughout their academic lives. The normalization of surveillance in educational settings risks eroding the development of autonomous, critically thinking citizens and replacing it with behaviorally engineered compliance.

Moreover, the use of AI in labor management introduces another layer of complexity. Companies employing automated tools to monitor employee productivity, attendance, and behavioral tendencies often do so without full transparency or informed consent. Algorithmic bias may inadvertently reinforce workplace discrimination, especially against persons with disabilities, LGBTQIA+ workers, or those from rural and indigenous backgrounds.⁹ AI systems, when left unchecked, can reify historical inequalities and justify them under the guise of efficiency or objectivity. Labor rights under the Constitution, including the right to just and humane conditions of work and to equal opportunity, must therefore be actively defended in the digital workplace.

⁷ Tuazon, R. (2020). Disinformation and democracy in the Philippines. *CMFR Reports*, Center for Media Freedom and Responsibility.

⁸ Mendoza, M. (2021). AI in Philippine Education: Promise and Perils. *UP CIDS Discussion Papers*, No. 2021-03.

⁹ Santos, B. (2022). Algorithmic Discrimination in Filipino Workplaces. *Philippine Journal of Labor and Policy*, 17(1), 44–67.



Public safety initiatives have also embraced AI-driven technologies such as predictive policing and automated threat detection systems. These systems often rely on historical crime data which may already reflect institutional biases. Consequently, communities that have historically been over-policed may face continued scrutiny, creating a feedback loop that reinforces systemic injustice.¹⁰ In this context, predictive policing not only raises constitutional concerns under the right to equal protection and due process but also creates an atmosphere of fear and suspicion that damages community trust.

AI-driven governance presents unique risks to electoral integrity. Political campaigns now utilize psychometric profiling and targeted messaging based on algorithmic analysis of voter behavior.¹¹ While microtargeting may improve campaign efficiency, it can also be used to manipulate voter perceptions using false or misleading information. The Cambridge Analytica scandal, which had ripple effects in the Philippines, demonstrated the potential for AI-powered tools to undermine democratic institutions. The Commission on Elections (COMELEC) must proactively regulate the use of AI in campaign practices and ensure full disclosure of digital strategy, funding sources, and algorithmic interventions.

IV. Charting the Course: A Call for Rights-Based Governance

The broader implications of AI for the Philippine legal and political system cannot be overstated. As the country continues to engage with digital transformation, its governance institutions must develop a nuanced understanding of AI's capabilities and risks. Lawmakers must resist the temptation to embrace technology for its novelty and instead subject it to rigorous ethical, constitutional, and practical scrutiny. Any AI-related legislation must embody the principles of transparency, accountability, non-discrimination, and participatory governance. Policymakers must involve civil society, academic experts, technologists, and affected communities in the formulation of AI rules to ensure that policies are responsive to local realities.

One promising direction is the development of an AI-specific legal framework that supplements existing data privacy and cybercrime laws. Such a framework should mandate impact assessments for high-risk AI systems, establish rights to explanation and redress for individuals affected by algorithmic decisions, and create institutional structures for oversight and compliance. The National Privacy Commission, while pivotal, requires expanded authority, resources, and technical capacity to engage with AI

¹⁰ Santos, B. (2022). Algorithmic Discrimination in Filipino Workplaces. *Philippine Journal of Labor and Policy*, 17(1), 44–67.

¹¹ Cadwalladr, C., & Graham-Harrison, E. (2018). The Cambridge Analytica Files. *The Guardian*. Retrieved from <https://theguardian.com>.



governance effectively.¹² It must work in tandem with a new or existing regulatory body dedicated to AI ethics, with powers to investigate, audit, and penalize violations.

Education and public awareness are foundational to effective AI governance. Citizens must be equipped with the knowledge to understand how AI systems function, what rights they retain in the digital age, and how to demand accountability from both government and private actors. Incorporating digital rights education into school curricula, conducting public information campaigns, and supporting independent media can help build a culture of digital vigilance. An informed citizenry is the most effective watchdog against technological overreach.

The international dimension of AI governance also bears mentioning. The Philippines must assert its sovereignty over digital infrastructure while engaging in regional and global cooperation. ASEAN frameworks on digital ethics and AI governance can provide a foundation for harmonized standards while allowing for national adaptation.¹³ Foreign tech companies operating in the country must be held to Philippine legal and ethical standards regardless of their origin, especially if their services are used in sensitive public domains such as health, education, or public safety.

Ultimately, the challenge lies not merely in managing a new technology but in reaffirming the values that define the Philippine constitutional order. The 1987 Constitution emerged as a bulwark against tyranny, informed by a history of state abuse and a struggle for democratic restoration. That legacy must guide the country's engagement with AI. Innovation must serve, not subvert, the dignity and rights of all Filipinos. Governance systems must be proactive, not reactive, and must evolve alongside technology without sacrificing the constitutional ideals of liberty, equality, and justice.

V. Deeper Dive: The Socio-Political Undercurrents of AI Adoption

As the digital revolution continues to intensify, the Philippine state and its citizens confront an array of emerging tensions where the rapid deployment of artificial intelligence (AI) poses significant legal, ethical, and political implications. While foundational constitutional and jurisprudential contexts of AI and surveillance in the Philippines have been previously established, further analysis reveals how entrenched socio-political structures, legislative inertia, and infrastructural limitations either facilitate or resist the unchecked expansion

¹² National Privacy Commission. (2023). Strategic Roadmap for AI and Privacy. Retrieved from <https://privacy.gov.ph>.

¹³ ASEAN. (2021). ASEAN Guidelines on Artificial Intelligence Governance and Ethics. Retrieved from <https://asean.org>.



of AI-driven systems. This dynamic interplay demands a nuanced understanding of how civil society, media, academia, and international cooperation can offer strategic counterweights to potential abuses while encouraging the development of an inclusive and ethically grounded digital governance framework.

VI. The Rise of Techno-Authoritarianism

Central to understanding the current trajectory of AI in the Philippines is the persistent asymmetry between state and citizen. AI technologies, when deployed without transparency or accountability, empower state and corporate actors to monitor and shape public behavior at an unprecedented scale. In a political climate where democratic institutions have historically been tested by authoritarian tendencies, such as during the Marcos regime or more recently under President Rodrigo Duterte, the risk of AI-enhanced surveillance becoming a tool for repression is not hypothetical. It is a genuine threat.¹⁴ When combined with pre-existing laws that already blur the lines between national security and civil liberties, such as the Anti-Terrorism Act of 2020,¹⁵ The introduction of facial recognition, predictive analytics, and automated data-mining platforms could result in a techno-authoritarian state cloaked under the guise of efficiency and innovation.

VII. A Fractured Defense: Regulatory Weakness and Legislative Gaps

This risk is exacerbated by the structural weakness of regulatory institutions. The National Privacy Commission (NPC), while an essential guardian of data protection under the Data Privacy Act,¹⁶ is significantly under-resourced and lacks the technical capacity to audit or meaningfully oversee AI systems operating across the country. There are few, if any, mechanisms for the NPC to inspect algorithmic systems used by government agencies or to demand algorithmic transparency from tech companies, both foreign and local.¹⁷ Compounding this is the fragmentation of jurisdiction: data protection is handled by the NPC, cybersecurity by the Department of Information and Communications Technology (DICT), innovation by the Department of Science and Technology (DOST), and public safety technologies by the Philippine National Police (PNP) or military agencies. This siloed

¹⁴ Human Rights Watch. (2020). *Duterte's War on Drugs: Widespread Abuses, Lack of Accountability*. <https://www.hrw.org/news/2020/06/04/philippines-dutertes-war-drugs-widespread-abuses-lack-accountability>

¹⁵ Republic Act No. 11479. (2020). *Anti-Terrorism Act of 2020*. <https://www.officialgazette.gov.ph/2020/07/03/republic-act-no-11479/>

¹⁶ Data Privacy Act of 2012 (Republic Act No. 10173). <https://www.privacy.gov.ph/data-privacy-act/>

¹⁷ National Privacy Commission. (2023). *Annual Report: Data Governance Challenges in the Age of AI*. <https://privacy.gov.ph/reports/2023-annual-report>



structure results in regulatory gaps, overlapping mandates, and an overall lack of strategic coherence. A fragmented bureaucracy is ill-suited to govern unified and deeply integrated AI systems.

Furthermore, existing legislative frameworks remain woefully inadequate. Congress has yet to pass a comprehensive AI Act, and most pending bills address only peripheral concerns such as digital entrepreneurship or cybersecurity. Where draft legislation touches on AI, it often lacks depth, failing to require mandatory impact assessments, transparency disclosures, or clear liability rules for harms caused by autonomous decision-making systems. Lawmakers must confront the technical challenge of translating human rights principles into actionable and enforceable provisions suitable for a technological landscape shaped by machine learning, natural language processing, and predictive modeling.¹⁸ Without a rights-based AI governance framework, any legal effort risks being symbolic rather than substantive.

VIII. The Data Divide: Inequality in a Data-Driven World

The situation is further complicated by an uneven digital infrastructure and widespread digital illiteracy. AI systems rely heavily on data that in the Philippine context is often incomplete, biased, or collected without proper consent.¹⁹ Rural communities, indigenous peoples, and informal labor sectors are particularly vulnerable to exclusion or misrepresentation in AI training data, leading to decisions that either ignore their existence or misclassify them in harmful ways. For example, if AI is used to determine eligibility for government aid or welfare programs but is trained only on urban datasets, rural recipients could be systematically disadvantaged or ignored.²⁰ Similarly, predictive policing systems trained on biased historical data could disproportionately target poor and marginalized communities already subjected to aggressive law enforcement tactics.²¹

IX. The Foreign Hand: Geopolitics and Digital Sovereignty

Another pressing concern is the involvement of foreign technology providers in critical infrastructure projects. Chinese firms, in particular, have played a significant role in supplying surveillance technology to the Philippine government including smart CCTV systems deployed in Metro Manila under

¹⁸ Senate Bill No. 892: Artificial Intelligence Regulation Act. (2023). <https://legacy.senate.gov.ph/bills>

¹⁹ UNDP. (2021). *Digital Readiness Assessment: Philippines Country Report*. <https://www.undp.org/publications/digital-readiness-philippines>

²⁰ IDRC. (2020). *Data for Development in the Philippines*. <https://idrc.ca/data-governance-ph>

²¹ Amnesty International. (2021). *Philippines: Biased Policing and the Marginalized*. <https://www.amnesty.org/en/documents/asa35/4032/2021/en/>



the "Safe Philippines" project.²² These arrangements raise both geopolitical and privacy concerns, especially given the limited transparency around data ownership, retention, and access. In the absence of data localization laws or bilateral privacy agreements, there remains the risk that sensitive data of Filipino citizens may be accessed, stored, or processed outside Philippine jurisdiction, without the protections guaranteed under domestic law. National digital sovereignty must be prioritized in any long-term AI strategy.²³

X. Voices of Resistance: Counterweights in a Contested Space

Despite these grim challenges, resistance is not only possible but already underway. Civil society groups such as the Foundation for Media Alternatives²⁴ and academic centers like the UP Center for Integrative and Development Studies²⁵ have begun mapping the digital ecosystem and educating the public on algorithmic accountability. Strategic litigation remains a potent tool for asserting rights, as seen in previous Supreme Court victories that struck down overbroad surveillance measures.²⁶ Additionally, grassroots movements have increasingly adopted digital literacy campaigns to empower local communities to understand, question, and contest technological impositions.

The media also plays a crucial role. Investigative journalism has brought to light numerous instances of overreach in the name of public safety. Reports from platforms like Rappler, PCIJ, and Vera Files have uncovered problematic use of AI in electoral manipulation, government propaganda, and surveillance contracting.²⁷ A vibrant, independent press not only uncovers abuse but can frame the narrative to place pressure on lawmakers and institutions. Without a free and fearless media, AI governance risks being shaped entirely behind closed doors.

At the same time, educational institutions must modernize curricula to integrate courses on AI ethics, digital rights, and computational thinking. Law schools, engineering departments, and communication studies must collaborate to produce a generation of professionals who can bridge the gap between technical expertise and normative reasoning. Legal professionals

²² Department of the Interior and Local Government (DILG). (2019). *Safe Philippines Project*. <https://www.dilg.gov.ph/news/Safe-Philippines-Launch/>

²³ Rappler. (2022). *China's Tech Footprint in the Philippines*. <https://www.rappler.com/technology/features/china-surveillance-tech-philippines>

²⁴ Foundation for Media Alternatives. (2022). *Tracking Surveillance in the Philippines*. <https://fma.ph/reports/surveillance-philippines/>

²⁵ UP-CIDS. (2021). *Algorithmic Governance and Civil Liberties*. <https://cids.up.edu.ph/ai-rights-philippines>

²⁶ Supreme Court of the Philippines. (2014). *Disini v. Secretary of Justice*, G.R. No. 203335. https://lawphil.net/judjuris/juri2014/feb2014/gr_203335_2014.html

²⁷ PCIJ. (2023). *Data, Democracy, and Surveillance in the Philippines*. <https://pcij.org/data-surveillance>



must be equipped to understand how AI works in order to effectively challenge algorithmic decisions in court, while technologists must be taught to build systems that respect rights by design. A multidisciplinary approach is not merely ideal but essential.²⁸

International cooperation also offers a meaningful avenue for reform. The Philippines can look to emerging global models such as the EU's AI Act,²⁹ Canada's Directive on Automated Decision-Making,³⁰ or UNESCO's AI Ethics Recommendation.³¹ ASEAN-wide agreements on ethical AI could harmonize standards across Southeast Asia while preserving local autonomy. Foreign aid and development assistance should prioritize capacity-building for AI regulation, digital inclusion, and public interest technology. The United Nations Special Rapporteur on the Right to Privacy and other global watchdogs can be engaged to monitor and support Philippine efforts to align AI practices with international human rights norms.³²

Finally, any conversation about AI in the Philippines must be anchored in its broader socio-political history. The 1987 Constitution emerged in response to an era of dictatorship defined by surveillance, suppression, and impunity. The challenge now is to prevent a digital return to authoritarianism under the cover of modernization. AI must not become the new Martial Law in code. Instead, it must be harnessed in service of people-centered governance, democratic participation, and equitable development. AI can be a tool for liberation or a mechanism of control. The outcome depends not just on code or infrastructure but on courage, vigilance, and collective will. The stakes could not be higher. As AI technologies gain deeper footholds in public and private decision-making, Filipinos must ask: who programs the programs? Who audits the algorithms? Who watches the watchers? These are not technical questions alone but constitutional imperatives. Protecting privacy rights in the age of smart machines is not merely about resisting surveillance; it is about reclaiming agency, dignity, and the democratic promise of the digital age.

²⁸ CHED. (2023). *Curriculum Guide: AI Ethics and Digital Literacy*. <https://ched.gov.ph/ai-curriculum/>

²⁹ European Parliament. (2023). *Artificial Intelligence Act*. <https://eur-lex.europa.eu/legal-content/EN/TXT/?uri=CELEX%3A52021PC0206>

³⁰ Government of Canada. (2020). *Directive on Automated Decision-Making*. <https://www.canada.ca/en/government/system/digital-government/digital-government-innovations/directiv-e-automated-decision-making.html>

³¹ UNESCO. (2021). *Recommendation on the Ethics of AI*. <https://unesdoc.unesco.org/ark:/48223/pf0000381137>

³² OHCHR. (2021). *Report of the Special Rapporteur on the Right to Privacy*. <https://www.ohchr.org/en/documents/thematic-reports/a76631-artificial-intelligence-and-right-privacy-report-special>



XI. Recasting the State: The Computational Turn in Public Service

As artificial intelligence continues its accelerated diffusion across key state functions, its impact is being most acutely felt within the domain of public service delivery and administrative governance. The Philippine government's ongoing integration of AI into identity management, social welfare allocation, and algorithmic decision-making systems marks a pivotal shift in the architecture of bureaucratic power. Unlike traditional modes of state-citizen interaction mediated by human discretion and paper-based systems, the digitization of governance—particularly through biometric identification schemes and predictive analytics—recasts the Filipino citizen not as a rights-bearing individual, but increasingly as a data point in an impersonal computational matrix. This recalibration of public administration challenges the normative foundations of democratic accountability, as decisions affecting fundamental socio-economic rights are gradually obscured within opaque technical systems governed more by efficiency metrics than human dignity.

The Philippine Identification System (PhilSys), institutionalized through Republic Act No. 11055, represents the state's flagship initiative in constructing a centralized biometric identity infrastructure. Promoted as a means to streamline transactions, reduce fraud, and enhance service delivery, PhilSys collects fingerprints, iris scans, facial images, and demographic data from every Filipino resident and overseas worker. Yet while the state extols its benefits, civil liberties advocates warn of the systemic risks embedded in such a massive data-gathering operation. The very logic of centralization, efficiency, and digitization necessitates the erasure of procedural redundancies, but such "efficiencies" often come at the cost of checks and balances. The more seamless the database, the more vulnerable it is to abuse. The more interoperable the system, the greater the risk of surveillance creep as datasets are cross-referenced by multiple agencies beyond their original intent. It is in this context that privacy becomes not merely an individual concern, but a structural one—embedded in the design, implementation, and purpose of digital governance systems.³³

XII. Code as Law: Automated Decisions in Social Welfare

The implementation of automated decision-making tools within public agencies further compounds concerns over due process and equality before the law. Algorithmic models are now being piloted to assist in everything from conditional cash transfer targeting under the Pantawid Pamilyang Pilipino Program (4Ps), to eligibility assessments for healthcare and housing subsidies.

³³ Foundation for Media Alternatives. (2021). *Biometric Surveillance and the PhilSys System: Civil Liberties Concerns*. <https://fma.ph/biometric-surveillance-report>



While such tools promise to reduce human bias and eliminate corruption, they risk encoding systemic discrimination if based on flawed, incomplete, or biased data. For instance, models trained on urban-centric data are likely to misrepresent rural and indigenous

households, leading to their exclusion from vital assistance. Unlike human discretion, which can be interrogated and appealed, algorithmic errors are frequently inscrutable, with beneficiaries unable to understand, let alone contest, the rationale behind an adverse outcome. The absence of clear legal mandates requiring transparency in AI-based public service decisions means that government agencies are under no obligation to explain their algorithms, making accountability elusive and redress mechanisms virtually nonexistent.³⁴

XIII. The All-Seeing City: Surveillance and Urban Governance

In this ecosystem of computational governance, the logic of surveillance is often smuggled in through the rhetoric of modernization. Smart city initiatives, for example, integrate AI-powered sensors, CCTV cameras with facial recognition, and traffic optimization platforms that collect real-time data on citizens' movements, behaviors, and interactions with state infrastructure. Projects such as Davao City's Public Safety and Security Command Center or Quezon City's use of predictive policing software illustrate how urban administration is being quietly transformed into a data-driven security apparatus. While purportedly designed for crime prevention or traffic management, these systems are rarely subjected to public audit, nor are there binding constraints on secondary data use. Without enforceable safeguards, surveillance technology deployed for safety today may be repurposed for repression tomorrow. The imperative for transparency, public consultation, and legal oversight is especially pressing in light of the country's history of authoritarianism and extrajudicial practices.³⁵

XIV. The Governance Void: Where Law Fails to Keep Pace

Compounding these challenges is the legal and institutional void surrounding algorithmic harms. The Data Privacy Act of 2012, while landmark in scope, was enacted before the rise of AI-driven systems and thus lacks explicit provisions on automated decision-making, data profiling, or algorithmic accountability. There is no current law requiring government agencies to conduct impact assessments before deploying AI tools, nor is there a mechanism for independent review of algorithms used in public

³⁴ Commission on Audit. (2022). *Audit Report on Automated Decision-Making in 4Ps Implementation*. <https://coa.gov.ph/reports/ai4ps>

³⁵ Rappler. (2023). *Quezon City's Smart Surveillance: Between Innovation and Overreach*. <https://rappler.com/tech/features/quezon-city-ai-surveillance>



decision-making. The National Privacy Commission, tasked with upholding data rights, remains underfunded and lacks the forensic technical capacity to audit algorithmic systems embedded deep within government infrastructure. Worse, the layered responsibility across bureaucracies—where the DICT, DILG, and NEDA all possess varying mandates over digital transformation—results in policy fragmentation and jurisdictional ambiguity. In this vacuum, public-private partnerships often proceed with minimal scrutiny, with foreign tech vendors introducing proprietary solutions that further obscure public understanding and democratic control.³⁶

XV. The Human Cost: Social Justice in the Digital Age

The impact of this digital transformation is most severe on the most vulnerable. For informal settlers without formal land titles, biometric registration may lead to data-based exclusion from social housing. For indigenous peoples, the forced integration into digital ID schemes may violate cultural autonomy and self-determination. For workers in the gig economy, algorithmic tracking by both government regulators and private platforms exposes them to constant surveillance, productivity scoring, and arbitrary deactivation without recourse. In these cases, data governance is not just a question of technical regulation—it is a matter of social justice. A rights-respecting AI framework must recognize that digital systems, when uncritically implemented, can reproduce the same hierarchies of marginalization that analog bureaucracies once entrenched.

What is needed is a fundamental rethinking of the relationship between technology and the public good. AI tools in government must be subjected to democratic oversight mechanisms, including participatory design processes, mandatory transparency disclosures, and regular independent audits. Legal reforms should mandate that any automated system used in determining rights, benefits, or punishments must include the possibility of human review and appeal. Furthermore, civil society and academic institutions must be empowered—through funding, legal standing, and data access—to act as watchdogs of digital governance. The ethical deployment of AI is not just a technical challenge but a constitutional mandate. It demands fidelity to due process, equal protection, and the inviolability of human dignity.

As the state becomes increasingly reliant on smart systems to mediate its obligations to the people, it must confront the paradox of automation: that machines designed to optimize welfare can, if unchecked, institutionalize harm. The promise of AI lies not in replacing public servants with algorithms but in

³⁶National Privacy Commission. (2022). *Position Paper on the Ethical Use of AI in Government Services*. <https://privacy.gov.ph/papers/ai-ethics-government>



augmenting human judgment with tools that are transparent, accountable, and rights-oriented. To watch the watchers in this new era requires more than technical audits; it requires reclaiming the digital commons as a space for collective governance and human-centered design. The future of public service in the Philippines will not be determined by code alone but by the values embedded within it and the people empowered to interrogate it.

XVI. The New Foundation: Algorithmic Governance Becomes Infrastructural

In the increasingly digitized and data-driven terrain of the Philippine state, the role of artificial intelligence in shaping the interface between government and governed has become not only more pronounced, but also more consequential. While earlier stages of technological adoption emphasized service optimization, transparency, and administrative reform, the current epoch reflects a deeper entrenchment of algorithmic governance within the everyday exercise of state power. From policing and health surveillance to digital welfare distribution and electoral logistics, smart systems have become infrastructural. Their presence is no longer framed as supplemental, but foundational to the logic of contemporary governance. This turn signals both opportunity and peril: opportunity in crafting more responsive, evidence-based public institutions; peril in outsourcing core decisions about rights, entitlements, and protections to opaque computational processes governed by technocratic logic rather than constitutional fidelity.

XVII. PhilSys: From Digital ID to Digital Discipline

Among the most contested developments in this context is the convergence of biometric identity systems and predictive governance models the Philippine Identification System (PhilSys) stands at the heart of this evolution. It has become not only a repository of demographic and biometric data but also a gateway mechanism for accessing key services ranging from social welfare to public education and emergency aid. Increasingly, it serves as the default key through which the citizen engages with the state. However, the consolidation of identity into a singular, digitized code—one embedded with facial, fingerprint, and iris scans—also allows the state to engage in population-level monitoring that would have been inconceivable in the era of analog bureaucracy. PhilSys became not merely an efficiency tool, but a powerful mechanism for surveillance, risk profiling, and population control. Without robust oversight mechanisms and legal firewalls, such capacity risks being used not to empower citizens, but to discipline them.³⁷

³⁷ Foundation for Media Alternatives. (2021). *Biometric Surveillance and the PhilSys System: Civil Liberties Concerns*. <https://fma.ph/biometric-surveillance-report>



XVIII. Echoes of the Past: State Overreach in the Digital Age

This is especially troubling when placed in the broader historical context of Philippine statecraft, wherein democratic institutions have frequently coexisted with authoritarian practices. The experience of martial law under Ferdinand Marcos Sr., and more recently the aggressive policing campaigns under Rodrigo Duterte, highlight a pattern of state overreach under the veneer of public security and order. In such a political culture, technologies that centralize control and minimize discretion can serve as enablers of repression rather than protectors of democratic order. The deployment of facial recognition tools in urban centers like Davao and Quezon City coupled with the use of AI in social media monitoring, has allowed law enforcement to track activists, journalists, and ordinary citizens engaged in protest or dissent. These systems often operate without clear guidelines, public consultation, or avenues for redress. Their impact is not hypothetical: surveillance tools have been used to justify arrests, initiate prosecutions, and intimidate critics. In the absence of procedural transparency, affected individuals often find themselves unable to challenge the systems that ensnare them.³⁸

XIX. Codifying Inequality: The Algorithmic Distribution of Aid

At the same time, algorithmic tools are being integrated into public resource distribution in ways that profoundly shape social opportunity. Conditional cash transfer programs such as the 4Ps now rely on data analytics to prioritize beneficiaries, analyze behavioral compliance, and even forecast attrition or eligibility trends. While these tools hold potential to curb corruption and improve efficiency, they also risk perpetuating structural inequities if not carefully designed. Data inputs often reflect historical disparities—rural invisibility, indigenous underrepresentation, or the informal sector's statistical invisibility. When these biases are absorbed into algorithmic systems, they do not disappear; they are codified. Indeed, machine learning models trained on such datasets can reproduce discriminatory patterns while appearing neutral or objective. Furthermore, beneficiaries affected by these decisions often lack the literacy, resources, or institutional support to challenge automated outcomes. As a result, denial of aid or services—while algorithmically justified—becomes a form of silent exclusion, with neither explanation nor remedy available.³⁹

³⁸Rappler. (2023). *Quezon City's Smart Surveillance: Between Innovation and Overreach*. <https://rappler.com/tech/features/quezon-city-ai-surveillance>

³⁹Commission on Audit. (2022). *Audit Report on Automated Decision-Making in 4Ps Implementation*. <https://coa.gov.ph/reports/ai4ps>



XX. An Unbalanced Equation: State Power and Citizen Recourse

This scenario exposes a fundamental asymmetry in the current architecture of digital governance. On one side stands a state equipped with sophisticated surveillance and decision-making technologies; on the other, citizens with limited recourse to transparency, participation, or accountability. The Philippine Data Privacy Act of 2012 provides a foundational framework for data protection but it was conceived before the mainstreaming of AI and lacks provisions tailored to the realities of algorithmic governance. There is no statutory obligation for state agencies to conduct algorithmic impact assessments, disclose model architecture, or provide meaningful opt-out mechanisms. The National Privacy Commission has issued non-binding guidelines on AI ethics, but lacks enforcement authority and sufficient technical infrastructure to conduct in-depth audits. This regulatory vacuum allows for the proliferation of AI systems in government without adequate public safeguards. Worse, the technical complexity of these systems often places them beyond the reach of traditional accountability institutions, including courts and legislative oversight bodies.⁴⁰

XXI. The Private Sector's Shadow: Outsourcing Governance, Obscuring Accountability

These challenges are compounded by the increasing role of private technology vendors in public AI deployment. Many of the tools currently used in smart city initiatives, public surveillance, and data-driven governance are developed, maintained, or financed by private corporations—both local and foreign. These actors frequently operate under opaque procurement arrangements, with proprietary protections shielding their algorithms from scrutiny. In some instances, partnerships between local governments and AI vendors involve barter-like arrangements, where cities provide data in exchange for “free” access to AI services. This model introduces a new dimension of risk: the commodification of citizen data for corporate innovation without clear public benefit or consent. Furthermore, outsourcing key governance functions to profit-driven entities undermines the sovereignty of democratic institutions. Decisions once made by accountable public servants now occur in black-box systems managed by entities that fall outside the purview of public law. The implications for data justice, national security, and democratic control are profound and demand urgent redress.⁴¹

⁴⁰ National Privacy Commission. (2022). *Position Paper on the Ethical Use of AI in Government Services*. <https://privacy.gov.ph/papers/ai-ethics-government>

⁴¹ Foundation for Media Alternatives. (2021). *Biometric Surveillance and the PhilSys System: Civil Liberties Concerns*. <https://fma.ph/biometric-surveillance-report>



XXII. The Moral Compass: Reclaiming Constitutional Values

Equally pressing is the ethical dimension of AI adoption in public institutions. The philosophical premise of rights-respecting governance rests on the recognition of individual dignity, autonomy, and participation. Yet many AI tools operate on logics that are instrumental, statistical, and impersonal. Their optimization goals may not align with constitutional values. For example, predictive policing tools often prioritize reducing crime metrics rather than preserving civil liberties. Welfare algorithms may aim to minimize error rates rather than maximize inclusion or human dignity. In such frameworks, the person becomes a variable, a vector, or an outlier—stripped of moral agency. The risk, then, is not only technical malfunction but moral abdication. Public institutions may gradually come to rely on statistical proxies and predictive scores rather than listening to the lived realities of the people they serve.

XXIII. A Pathway Forward: Reimagining Digital Governance

In confronting this challenge, the pathway forward must involve a radical re-imagination of digital governance. AI must be treated not as an infallible oracle but as a set of tools embedded within political, ethical, and social contexts. There must be mandatory transparency protocols requiring public agencies to publish details about algorithmic tools used in service delivery, including data sources, model architecture and intended outcomes. Agencies should be required to conduct algorithmic audits and bias assessments before deploying any system affecting rights or benefits. Furthermore, a public ombudsman for digital governance should be created with powers to receive complaints, investigate algorithmic harm, and recommend remedies. Legal safeguards must also enshrine the right to human intervention—no critical public decision should be made solely by a machine.

Parallel to institutional reforms, there must be a vibrant civic engagement ecosystem that can act as both watchdog and co-creator of ethical digital infrastructure. Civil society organizations must be capacitated—through funding, legal standing, and data access—to evaluate AI systems, propose alternatives, and mobilize affected communities. Universities and research institutions should receive state support to develop independent AI research programs focused on public interest use-cases, algorithmic fairness, and democratic accountability. Most importantly, ordinary citizens must be equipped with the digital literacy and political power to participate in debates around technology, privacy, and rights. In doing so, the project of AI governance becomes not a technical exercise but a democratic one.



At the heart of this endeavor is a recognition that digital systems are not neutral—they carry assumptions, exclusions, and power relations. A rights-based AI governance model must therefore begin with the people: their stories, their struggles, and their aspirations for a more just society. Only by foregrounding the lived experience of marginalized communities can AI tools be reoriented toward solidarity, inclusion, and emancipation. In this sense, privacy is not merely the right to be left alone—it is the right to exist freely, participate fully, and be recognized equally in the digital age.

As the Philippines stands at the crossroads of digital transformation it must decide whether AI will serve as an instrument of democratic deepening or democratic erosion. The stakes are high, and the path is fraught but with courageous policy-making, vigilant civil society, and ethical leadership, it is possible to reclaim technological progress as a vehicle for human dignity and social justice.

XXIV. The Expanding Frontier: AI's Inroads into New Domains

In continuing the critical exploration of Artificial Intelligence (AI) integration in public governance within the Philippine context, the discourse now moves to the systematic normalization of smart governance technologies and their implications for democratic culture. As previously articulated, algorithmic systems have not only become infrastructural but deeply influential in shaping state-citizen interactions. This influence is expanding rapidly through new domains such as education, labor management, transportation, and environmental governance. Each presents distinct ethical dilemmas, privacy risks, and challenges to democratic accountability underscoring the urgent need for an integrative and rights-respecting AI governance framework that not only operates reactively but anticipates harm through proactive design.

XXV. The Algorithmic Classroom: Education Between Personalization and Exclusion

One of the most illustrative examples of AI-driven transformation can be observed in the Philippine education sector. Post-pandemic educational recovery has leaned heavily on digital solutions that embed algorithmic systems in student assessments, enrollment prioritization, scholarship selection, and curriculum development. Automated Learning Management Systems (LMS), which were introduced under the banner of equity and efficiency, increasingly rely on data profiling techniques that categorize students based on socioeconomic background, prior academic performance, and behavioral data such as attendance or online participation. While these tools are ostensibly designed to personalize learning and ensure better



outcomes they can also operate as mechanisms of exclusion, tracking, and labeling. For instance, predictive algorithms may forecast dropout probabilities, prompting automated interventions or resource allocation that neglects the nuances of human experience. Students from marginalized backgrounds—such as those without consistent internet access or digital fluency—are often rendered as high-risk or low-priority, reinforcing rather than correcting historical inequities. The invisibility of these algorithmic categorizations further erodes transparency and due process, as students and parents are rarely informed about the criteria used or allowed to contest algorithm-driven decisions. The lack of robust consent frameworks and ethical guidelines compounds this vulnerability, leaving educational stakeholders exposed to potentially life-altering consequences of opaque data systems.⁴²

XXVI. The Automated Workplace: Labor Rights in the Age of AI

Labor and employment governance offers another critical frontier in which AI deployment is reshaping traditional regulatory functions. As the Philippine economy becomes increasingly digitized, public labor agencies are turning to AI-driven platforms to match jobseekers with employers, monitor compliance with labor standards, and forecast employment trends. The Department of Labor and Employment (DOLE), for example, has begun piloting predictive analytics models to assess which sectors are at risk of automation-induced job displacement and to target skills retraining accordingly. While such initiatives reflect forward-thinking governance, they also risk entrenching algorithmic paternalism: systems that presume to know what is best for workers without engaging them meaningfully in the design or deployment of such tools. Moreover, automated labor profiling—especially when integrated with biometric systems and digital identity platforms—raises acute concerns about worker surveillance, data commodification, and the erosion of collective bargaining rights. For instance, an algorithm that flags a worker as ‘uncooperative’ based on attendance metrics or social media activity could result in exclusion from employment pools without any opportunity for redress. The intersection of labor rights and data rights remains perilously underdeveloped in current Philippine law, leaving workers vulnerable to invisible adjudications that mimic the logic of social sorting rather than human dignity.⁴³

⁴²Department of Education. (2023). *AI in Basic Education: Impacts and Ethical Considerations*. <https://deped.gov.ph/ai-education-ethics>

⁴³ DOLE. (2022). *AI Systems and Labor Profiling: A Policy Brief*. <https://dole.gov.ph/ai-labor-policy>



XXVII. Smart Mobility, Pervasive Control: The Future of Transportation

In the realm of urban governance and transportation, AI tools are increasingly being integrated into the management of traffic systems, public transit optimization, and mobility surveillance. Smart traffic lights, predictive congestion models, and AI-enabled ticketing platforms are promoted as necessary tools to address the chronic inefficiencies of Philippine metropolitan areas, especially Metro Manila. However, these technologies often function as levers for expanded surveillance. Facial recognition software installed in public transportation hubs and traffic junctions is used not only to monitor flow but to track individuals, enforce warrant lists, and link commuter behavior to broader datasets including credit scoring and criminal records. Without clear guardrails on proportionality, necessity, and purpose limitation, these tools can quickly shift from facilitators of mobility to instruments of control. Moreover, smart transportation systems often reproduce spatial injustice: data gathered from urban centers informs infrastructure investments, while rural and peri-urban areas are rendered statistically invisible due to poor data collection, thereby exacerbating service disparities. The asymmetry in visibility results in a feedback loop where data-rich zones receive further development and data-poor areas stagnate. The question of who is seen and who is acted upon by smart governance tools, must be central to the ethics of AI-driven mobility platforms.⁴⁴

XXVIII. Digital Stewards or Digital Sovereigns? AI in Environmental Governance

Environmental governance presents an additional vector where AI tools are increasingly deployed to address critical issues such as deforestation monitoring, climate risk modeling, disaster response coordination, and pollution tracking. While these initiatives ostensibly serve the public good they also involve extensive data extraction and real-time monitoring that can impinge on individual and community privacy. For example, satellite-based AI models used to detect illegal logging are sometimes coupled with ground-level biometric tracking of forest-dwelling communities, including Indigenous Peoples. These populations often reside in biodiversity hotspots and ancestral domains, and their proximity to ecological risk zones is misinterpreted as a potential liability. In such contexts, AI systems not only surveil environmental degradation but can inadvertently criminalize traditional livelihoods. Moreover, community consent is often presumed rather than secured. When environmental data is shared with international donors or private sector actors, the asymmetry of benefit becomes clear: those who contribute the most

⁴⁴MMDA. (2023). *Metro Manila Smart Mobility Project: Technical Overview*. <https://mmda.gov.ph/smartmobility2023>



information receive the least compensation or agency. Algorithmic systems must therefore be contextualized within power relations rather than seen as neutral environmental stewards. The intersection of ecological justice and data sovereignty demands a holistic lens, especially in a country as environmentally vulnerable and socially diverse as the Philippines.⁴⁵

XXIX. Building an Architecture for Accountability

In each of these domains, a common thread emerges: the integration of AI into public governance creates new modes of power that are often inscrutable, unevenly distributed, and normatively underdetermined. The challenge is not merely technical, but fundamentally political and ethical. A governance regime that permits unregulated algorithmic interventions in critical areas of life risks undermining democratic principles, especially when decision-making becomes insulated from public contestation. A crucial response lies in the architecture of what scholars term "algorithmic accountability" a multidimensional framework that mandates transparency, auditability, explainability, and contestability in the use of AI systems by the state. Yet in the Philippines, these principles remain largely aspirational. Existing laws and institutional structures lack the teeth and coherence to ensure their realization.

One foundational reform must involve the strengthening of public participation in technological governance. Public consultations, citizen assemblies, and participatory technology assessments must be institutionalized, especially in domains where AI systems make rights-impacting decisions. This requires not only procedural mandates but also substantive support mechanisms: funding for civil society organizations to engage in technical dialogue, open data initiatives that democratize access to datasets used in AI systems, and capacity-building programs that develop civic and technical literacy. In this participatory model, the public is not merely a passive recipient of digital governance but an active shaper of its trajectory. Moreover, the composition of advisory bodies on AI must reflect diversity in terms of sectoral representation, regional inclusion, and socio-economic background, ensuring that those most affected by algorithmic systems have a seat at the table.

Legal reform is also indispensable. The Data Privacy Act of 2012 must be updated to include provisions specific to AI and algorithmic decision-making, including mandatory impact assessments, rights to explanation and human intervention, and redress mechanisms. Statutory

⁴⁵DENR. (2023). *Environmental Monitoring and AI: Risks to Community Privacy*.
<https://denr.gov.ph/ai-environment-privacy>



Journal for Law Advocacy
Volume 5, Year 2025-2026

authority should be granted to the National Privacy Commission to conduct algorithmic audits, subpoena technical documentation, and penalize non-compliance. Additionally, a new legislative agenda should consider the establishment of a Digital Rights Ombudsman, an independent office with the mandate to investigate algorithmic harms, recommend systemic reforms, and provide recourse to affected individuals. This office must be accessible, well-resourced, and empowered to operate across both public and private domains.

Equally, there is a need to reframe public sector innovation away from technological determinism and toward ethical pluralism. This means rejecting the notion that technological efficiency automatically equates to good governance. Instead, AI systems must be evaluated on their capacity to uphold constitutional values, promote social equity, and respect human dignity. Ethical review boards composed of ethicists, technologists, legal experts, and community representatives should vet all significant AI deployments in government. These bodies should not only assess technical robustness but also evaluate social desirability, cultural sensitivity, and moral defensibility.

The Philippines is not alone in confronting these challenges, but its unique socio-political landscape—marked by a history of authoritarianism, colonial legacies, and vibrant civic resistance—renders its path distinct. As smart machines become embedded in the machinery of governance, the imperative is clear: to reclaim technology as a tool of public empowerment, rather than control. This requires more than regulation; it demands a cultural shift in how public institutions conceive of data, decision-making, and the role of technology in society. Only through sustained, inclusive, and principled engagement can the promise of AI be reconciled with the imperatives of justice, democracy, and human rights.

XXX. Conclusion: Imagining a Democratic Digital Future

As we reach the culminating phase of this exploration into the implications of Artificial Intelligence (AI) and smart surveillance technologies in the Philippines, it becomes essential to synthesize the issues discussed and turn decisively toward imagining the future. The previous discussions have demonstrated how algorithmic governance, biometric datafication, and digital surveillance intersect in ways that can erode civil liberties, perpetuate inequality, and reinforce authoritarian tendencies. However, these outcomes are not inevitable. The governance of AI and surveillance in the Philippines can be reshaped through bold legal reform, robust civic infrastructure, and a resolute commitment to democratic values.



At the core of this final reflection is the imperative to view AI not simply as a set of neutral tools, but as inherently political infrastructures that must be subjected to the same scrutiny, debate, and participatory oversight as any other exercise of power in a democracy.⁴⁶ This means rejecting narratives of technological determinism and instead embracing a human-centered paradigm of governance. AI must be aligned with constitutional rights, indigenous knowledge systems, and the aspirations of historically marginalized communities. This process begins with rethinking the very frameworks through which state legitimacy is exercised in the digital era.

The challenge lies in developing a comprehensive, adaptive, and justice-oriented legal framework that goes beyond the outdated provisions of the 2012 Data Privacy Act. New legislation must be enacted to mandate algorithmic transparency, establish the right to explanation for automated decisions, and ensure due process in AI-mediated governance.⁴⁷ These laws must create binding obligations for public and private actors alike, subject their practices to democratic oversight, and empower affected individuals to seek redress. Equally vital is the establishment of a constitutional right to informational self-determination, recognizing that data governance is inseparable from questions of citizenship, equality, and agency.

Beyond legislation, institutional innovation is key. The creation of a national Algorithmic Accountability Commission—independent of existing executive bodies—could serve as an anchor institution for digital rights enforcement. Such a body should be granted investigatory powers, the capacity to audit government and corporate algorithms, and a mandate to consult with civil society and academia. The commission could also host a national AI registry, where all public sector AI applications must be disclosed and documented. This would bring visibility to algorithmic systems currently operating in legal and political obscurity.⁴⁸

These institutional innovations must be paralleled by procedural reforms that embed participatory governance in digital policy-making. Public consultations, citizens' assemblies, and deliberative fora should be institutionalized in the development and deployment of AI tools that impact the public. The principle of "*nothing about us without us*" must become a normative standard, particularly in decisions involving vulnerable groups, indigenous peoples, urban poor communities, and others disproportionately affected by algorithmic systems. Democratic participation cannot be an

⁴⁶Foundation for Media Alternatives. (2021). *Biometric Surveillance and the PhilSys System: Civil Liberties Concerns*. <https://fma.ph/biometric-surveillance-report>

⁴⁷Rappler. (2023). *Quezon City's Smart Surveillance: Between Innovation and Overreach*. <https://rappler.com/tech/features/quezon-city-ai-surveillance>

⁴⁸Commission on Audit. (2022). *Audit Report on Automated Decision-Making in 4Ps Implementation*. <https://coa.gov.ph/reports/ai4ps>



Journal for Law Advocacy
Volume 5, Year 2025-2026

afterthought; it must be designed into the very architecture of digital governance.

Educational reform is also essential. Digital and algorithmic literacy should be integrated into the national education curriculum—from primary through tertiary levels—to equip future generations with the capacity to understand, question, and shape the technologies that mediate their lives.⁴⁹ Public education campaigns must be launched to demystify AI and raise awareness about digital rights, surveillance risks, and avenues for redress. These efforts should be inclusive, multilingual, and culturally responsive, ensuring that no community is left behind in the digital literacy project.

Meanwhile, research and development must be reoriented toward public interest technology. State funding should prioritize projects that explore AI for social justice, community empowerment, and ecological resilience. Ethical AI incubators, hosted within universities and research centers, can serve as platforms for interdisciplinary collaboration and innovation. These centers can support open-source development, participatory design methods, and cross-sectoral dialogue between technologists, lawyers, activists, and policy-makers. By fostering a culture of critical inquiry and creative experimentation, the Philippines can lead in developing AI systems that are not only technically robust, but socially responsive.

International cooperation is another vital frontier. As AI development is inherently transnational, the Philippines must engage actively in global forums on digital governance. The country should advocate for human rights-based frameworks at venues such as the United Nations, ASEAN, and the OECD. It must also resist techno-authoritarian models being exported by global powers and instead forge alliances with countries and civil society actors advancing digital democracy. Such diplomacy should include advocating for global norms on data sovereignty, algorithmic transparency, and the right to digital self-determination.

Of course, these reforms cannot materialize without political will. The Philippine government must move beyond performative tech adoption and commit to substantive reform. This requires bold leadership willing to confront entrenched interests, break with techno-solutionist paradigms, and champion a vision of governance that centers human dignity. It also requires a vigilant and organized civil society capable of holding power to account. Social movements, journalists, community organizers, and lawyers must coalesce

⁴⁹National Privacy Commission. (2022). *Position Paper on the Ethical Use of AI in Government Services*. <https://privacy.gov.ph/papers/ai-ethics-government>



Journal for Law Advocacy
Volume 5, Year 2025-2026

around a shared agenda for digital justice, demanding that AI systems serve the people, not surveil them.

This shared agenda must be intersectional and inclusive. It must address how algorithmic harms intersect with gender, class, ethnicity, and geography. It must amplify the voices of domestic workers subjected to biometric tracking, of students reduced to behavioral scores, of farmers excluded from digital aid platforms, and of indigenous communities rendered invisible by colonial data regimes. The stories of those at the margins must be the starting point for reimagining AI governance. Only then can we move from watching the watchers to empowering the watched.

In conclusion, the future of privacy and rights in the age of smart machines is not preordained it is a political question—a question of who gets to decide, who gets to benefit, and who gets to resist. The Philippines stands at a pivotal moment, with the tools, the talent, and the democratic spirit to build a digital future anchored in justice. Whether it seizes that opportunity will depend not on algorithms, but on us.

Bibliography

Constitution

Phil. Const. art. III, § 3.

Statutes

Data Privacy Act of 2012, Republic Act No. 10173 (Phil.).

Philippine Identification System Act, Republic Act No. 11055 (2018).

Anti-Terrorism Act of 2020, Republic Act No. 11479 (2020),
<https://www.officialgazette.gov.ph/2020/07/03/republic-act-no-11479/>.

Artificial Intelligence Regulation Act, S. Bill No. 892 (2023),
<https://legacy.senate.gov.ph/bills>.

Cases

Disini v. Sec'y of Justice, G.R. No. 203335 (Phil. Feb. 11, 2014),
https://lawphil.net/judjuris/juri2014/feb2014/gr_203335_2014.



Journal for Law Advocacy
Volume 5, Year 2025-2026

Ople v. Torres, G.R. No. 127685 (Phil. July 23, 1998).

Journal Articles

Reyes, D., *Facial Recognition and the Future of Surveillance in the Philippines*, 95 Phil. L.J. 201 (2021).

Santos, B., *Algorithmic Discrimination in Filipino Workplaces*, 17 Phil. J. Lab. & Pol'y 44 (2022).

Books & Other Nonperiodic Materials

Mendoza, M., *AI in Philippine Education: Promise and Perils*, U.P. Ctr. for Integrative & Dev. Stud. Discussion Papers, No. 2021-03 (2021).

Tuazon, R., *Disinformation and Democracy in the Philippines*, Ctr. for Media Freedom & Responsibility Reports (2020).

Online Sources

Amnesty Int'l, *Philippines: Biased Policing and the Marginalized* (2021), <https://www.amnesty.org/en/documents/asa35/4032/2021/en/>.

ASEAN, *ASEAN Guidelines on Artificial Intelligence Governance and Ethics* (2021), <https://asean.org>.

Cadwalladr, C. & Graham-Harrison, E., *The Cambridge Analytica Files*, Guardian (2018), <https://theguardian.com>.

Comm'n on Audit, *Audit Report on Automated Decision-Making in 4Ps Implementation* (2022), <https://coa.gov.ph/reports/ai4ps>.

Comm'n on Higher Educ., *Curriculum Guide: AI Ethics and Digital Literacy* (2023), <https://ched.gov.ph/ai-curriculum/>.

Dep't of Educ., *AI in Basic Education: Impacts and Ethical Considerations* (2023), <https://deped.gov.ph/ai-education-ethics>.

Dep't of Env't & Nat. Res., *Environmental Monitoring and AI: Risks to Community Privacy* (2023), <https://denr.gov.ph/ai-environment-privacy>.



Journal for Law Advocacy
Volume 5, Year 2025-2026

Dep't of the Interior & Local Gov't, *Safe Philippines Project* (2019),
<https://www.dilg.gov.ph/news/Safe-Philippines-Launch/>.

Dep't of Lab. & Emp., *AI Systems and Labor Profiling: A Policy Brief* (2022),
<https://dole.gov.ph/ai-labor-policy>.

Eur. Parliament, *Artificial Intelligence Act* (2023),
<https://eur-lex.europa.eu/legal-content/EN/TXT/?uri=CELEX%3A52021PC0206>.

Found. for Media Alternatives, *Biometric Surveillance and the PhilSys System: Civil Liberties Concerns* (2021), <https://fma.ph/biometric-surveillance-report>.

Found. for Media Alternatives, *Tracking Surveillance in the Philippines* (2022),
<https://fma.ph/reports/surveillance-philippines/>.

Gov't of Can., *Directive on Automated Decision-Making* (2020),
<https://www.canada.ca/en/government/system/digital-government/digital-government-innovations/directive-automated-decision-making.html>.

Human Rights Watch, *Duterte's War on Drugs: Widespread Abuses, Lack of Accountability* (2020),
<https://www.hrw.org/news/2020/06/04/philippines-dutertes-war-drugs-widespread-abuses-lack-accountability>.

I.D.R.C., *Data for Development in the Philippines* (2020),
<https://idrc.ca/data-governance-ph>.

Metro Manila Dev. Auth., *Metro Manila Smart Mobility Project: Technical Overview* (2023), <https://mmda.gov.ph/smartmobility2023>.

Nat'l Privacy Comm'n, *Annual Report: Data Governance Challenges in the Age of AI* (2023), <https://privacy.gov.ph/reports/2023-annual-report>.

Nat'l Privacy Comm'n, *Position Paper on the Ethical Use of AI in Government Services* (2022), <https://privacy.gov.ph/papers/ai-ethics-government>.

Nat'l Privacy Comm'n, *Strategic Roadmap for AI and Privacy* (2023),
<https://privacy.gov.ph>.



Journal for Law Advocacy
Volume 5, Year 2025-2026

Off. of the U.N. High Comm'r for Hum. Rts., *Report of the Special Rapporteur on the Right to Privacy* (2021),

<https://www.ohchr.org/en/documents/thematic-reports/a76631-artificial-intelligence-and-right-privacy-report-special>.

PCIJ, *Data, Democracy, and Surveillance in the Philippines* (2023),

<https://pcij.org/data-surveillance>.

Rappler, *China's Tech Footprint in the Philippines* (2022),

<https://www.rappler.com/technology/features/china-surveillance-tech-philippines>.

Rappler, *Manila's Surveillance Plans Raise Privacy Concerns* (2020),

<https://rappler.com>.

Rappler, *Quezon City's Smart Surveillance: Between Innovation and Overreach* (2023), <https://rappler.com/tech/features/quezon-city-ai-surveillance>.

U.N.D.P., *Digital Readiness Assessment: Philippines Country Report* (2021),

<https://www.undp.org/publications/digital-readiness-philippines>.

U.N.E.S.C.O., *Recommendation on the Ethics of AI* (2021),

<https://unesdoc.unesco.org/ark:/48223/pf0000381137>.

U.P. Ctr. for Integrative & Dev. Stud., *Algorithmic Governance and Civil Liberties* (2021), <https://cids.up.edu.ph/ai-rights-philippines>.